

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	Case No. 00-005
	)	
KEITH C. VAN LOON, Ph.D.	)	
	)	SETTLEMENT AGREEMENT
License No. 301-00677	)	AND FINAL ORDER
	)	
Respondent.	)	

COMES NOW the Iowa Board of Psychology Examiners (Board) and Keith C. Van Loon, Ph.D., (Respondent) and pursuant to Iowa Code sections 17A.10(2) and 272C.4) (1999) and enter into the following Settlement Agreement and Final Order in case number 00-005.

1. Respondent was issued license number 301-00677 to practice psychology in Iowa on July 24, 1992, and Respondent's license is currently on inactive status.
2. On or about October 20, 2000, the Board, upon a finding of probable cause, filed a Statement of Charges in this case, alleging that Respondent had engaged in acts violative of the Board's ethical rules and other rules governing the practice of psychology.
3. The Board has jurisdiction over the parties and the subject matter herein.
4. Execution of this Settlement Agreement and Final Order constitutes resolution of this contested case. By executing this Settlement Agreement and Final Order, Respondent expressly waives all rights to a hearing on the charges contained in the Statement of Charges and waives any objection to this Settlement Agreement and Final Order.
5. Respondent is freely and voluntarily entering into this agreement and he agrees that the State's attorney may present the agreement to the Board.
6. This Settlement Agreement and Final Order is subject to approval by a majority of

the full Board. If the Board fails to approve this agreement, it shall have no force or effect to either party.

7. The Board's approval of this Settlement Agreement and Final Order shall constitute the resolution of a contested case proceeding and shall be a FINAL ORDER of the Board.

8. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

9. The terms and conditions imposed by this Settlement Agreement and Final Order shall become effective as of the date approved by the Board.

10. Without making any admission as to the current allegations, the Respondent does not contest the allegations of the current charges.

11. The Respondent agrees to voluntarily surrender his license to practice psychology in the State of Iowa and also agrees that, pursuant to Iowa Code section 154B.8, a voluntary surrender must be accompanied by written statement of intention and when accepted by the director of public health, the Respondent agrees that the voluntary surrender shall have the same force and effect as an order of revocation issued by the Board.

12. The Respondent hereby agrees not to engage in the practice of psychology in the State of Iowa.

13. The Respondent agrees that should he ever seek reinstatement of his license to practice psychology such application for reinstatement shall be subject to the provisions of 645 Iowa Administrative Code § 11.31. In any application for reinstatement, the Respondent shall be required to submit evidence that demonstrates to the Board's satisfaction that the basis for the

revocation and surrender of Respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The Respondent shall bear the burden of proof of establishing these facts.

14. This Settlement Agreement and Final Order shall be part of the permanent record of the Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

IT IS HEREBY ORDERED:

Respondent's voluntary surrender of his Iowa psychologist license number 301-00677 is hereby accepted and, pursuant to 645 Iowa Administrative Code 12.1(5), said surrender shall have the same force and effect as an order of a revocation.

Keith C Van Loon, Ph.D
Keith C. Van Loon, Ph.D.
Respondent

The statement of charges and informal settlement agreement is approved by the Board on this 2 day of December, 2000.

Scott Shafer
Dr. Scott Shafer, Chair
Iowa Board of Psychology Examiners

Dr. Stephen C. Gleason
Director
Iowa Department of Public Health
Lucas State Office Building
Des Moines, Iowa 50319

Dear Mr. Gleason:

You are hereby notified that in accordance with the provisions of Iowa Code section 154B.8, this letter shall constitute my written statement of intention to voluntarily surrender the enclosed license to practice psychology in the state of Iowa. You are further notified that I fully understand that upon your acceptance of this voluntary surrender of my license, such acceptance shall have the same force and effect as an order of revocation.

You are further notified that I hereby affirm my decision not to engage in the practice of psychology in the state of Iowa and I hereby absolve and release the Iowa Department of Public Health and the Iowa Board of Psychology Examiners from any further right, claim, or title to the certificate of license and to any of the rights, privileges and honors pertaining thereto.

This written statement is my intention to voluntarily surrender my psychology license is being signed by me on this 2 day of December, 2000, as my own voluntary act and deed.

Keith C Van Loon Ph.D
Keith C. Van Loon, Ph.D.
Respondent

Gary C Cruppen, Ed.D
Witness

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

)
) Case No. 00-005
)
)

KEITH C. VAN LOON, Ph.D.

License No. 301-00677

Respondent.

)
) **STATEMENT OF CHARGES**
)
)

TO THE ABOVE-NAMED RESPONDENT:

The Iowa Board of Psychology Examiners has jurisdiction over this matter pursuant to Iowa Code chapters 17A, 154B, and 272C (1999).

Licenses issued by the Board are subject to the laws of the State of Iowa and to the administrative rules of the Board.

Respondent Keith C. Van Loon, Ph.D., was at all times during the following events licensed to practice psychology in the State of Iowa. Respondent was issued license number 301-00677 to practice psychology in the State of Iowa on July 24, 1992, as recorded in the permanent records in the office of the Board, and his license is currently on inactive status.

Respondent's last known address was 800 Dove Trail, Sioux Falls, South Dakota 57108.

COUNT I

Respondent is charged under Iowa Code §§ 147.55 & 272C.10 (1999) and 645 Iowa Administrative Code 240.212(5) with having had a license to practice psychology issued by another state revoked by the licensing authority of another state.

CIRCUMSTANCES

1. On June 29, 2000, Respondent entered into a Stipulation for Revocation with the

South Dakota Board of Examiners of Psychologists. A copy of the Stipulation for Revocation is attached hereto as "Exhibit A" and are incorporated herein by reference. The Stipulation for Revocation indicates that the Respondent reported instances of sexual contact to the South Dakota Board of Examiners of Psychologists.

2. The Respondent made a similar self-report of sexual contact with a patient to the Iowa Board of Psychology Examiners.

3. The South Dakota Board of Examiners of Psychologists entered an Order of Revocation of License on July 13, 2000. The Order of Revocation revoked the Respondent's license to practice psychology in the State of South Dakota and ordered him to surrender his South Dakota license certificate for the practice of psychology within ten days of service of the order and stipulation upon him. Notice of Entry of the Order of Revocation of License was issued on July 25, 2000. Copies of the Order of Revocation of License and the Notice of Entry of Order of Revocation of License are attached hereto as "Exhibits B & C" respectively and are incorporated herein by reference.

FINDING OF PROBABLE CAUSE

On October 20, 2000, the Iowa Board of Psychology Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 20th day of October, 2000.



Scott Shafer, Ph.D., Board Chair
Iowa Board of Psychology Examiners

STATE OF SOUTH DAKOTA

SOUTH DAKOTA BOARD OF EXAMINERS OF PSYCHOLOGISTS

IN THE MATTER OF THE	)	STIPULATION FOR
PROFESSIONAL LICENSE OF:	)	REVOCATION
Keith C. Van Loon	)	

The South Dakota Board of Examiners of Psychologists (hereinafter Board), by and through its attorney Timothy Bartlett, Assistant Attorney General, Fred Magnavito, Ph.D., Chairman of said Board; S. Richard Gunn, Ph.D., Complaints Officer; and Keith C. Van Loon, Ph.D. (hereinafter Van Loon), hereby stipulate and agree as follows:

1. That during all times herein, Van Loon has been and now is subject to the jurisdiction of the Board from which he holds a valid South Dakota Psychology License, No. 333, originally issued December 10, 1993, and approved for relicensure on June 15, 1999.

2. That the Board received a complaint on February 8, 2000, reporting instances of sexual contact by Van Loon. The complaint letter dated February 1, 2000, is a self-report of sexual contact by Van Loon.

3. That the parties have agreed to negotiate a stipulation for the revocation of Van Loon's psychology license subsequent to Van Loon's offer to turn in his psychology license.

4. That action of the Board shall be by a majority vote of the Board.

5. That Van Loon shall surrender his South Dakota license certificates to the Board within ten (10) days of service of this Stipulation of Revocation and Order for Revocation. Service is complete upon mailing the aforementioned documents to Van Loon at his last known address.

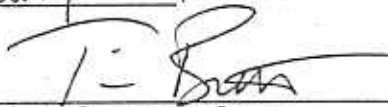
6. In the event the Board in its discretion does not approve this settlement, this Stipulation is withdrawn and shall be of no evidentiary value and shall not be relied upon nor introduced by either party in a disciplinary action undertaken pursuant to the allegations necessitating this stipulation except that Van Loon agrees that should the Board reject this Stipulation and the case proceeds to hearing, Van Loon will assert no claims that the Board was prejudiced by its review and discussion of this Stipulation or any records relating hereto.

7. That Van Loon understands that pursuant to SDCL 36-26-38 and SDCL ch. 1-27 the status of his license and the contents of the file is a matter of public record, and he hereby waives any right to confidentiality arising from SDCL 1-26-2.

8. That Van Loon understands his right to a hearing before the Board on this matter, and that he voluntarily, knowingly, intelligently, and without further notice, waives these rights for the purpose of this Stipulation and without hearing or other proceedings agrees to the conditions of this Stipulation.

9. That Van Loon and the Board agree that the Order for Revocation to be entered pursuant to Stipulation shall be an intermediate order herein, and shall be entered without further notice upon the Board's approval of this agreement.

Dated this 25 day of July, 2000.



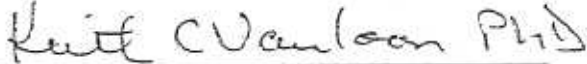
Timothy Bartlett
Assistant Attorney General
500 East Capitol Avenue
Pierre, South Dakota 57501-5070
Telephone: (605) 773-3215

Dated this 13 day of July, 2000.



Fred Magnavito, Ph.D.
Chairman, South Dakota
Board of Examiners of
Psychologists

Dated this 29 day of June, 2000.



Keith C. Van Loon, Ph.D.

STATE OF SOUTH DAKOTA

SOUTH DAKOTA BOARD OF EXAMINERS OF PSYCHOLOGISTS

IN THE MATTER OF THE	)	ORDER OF REVOCATION
PROFESSIONAL LICENSE OF:	)	OF LICENSE
Keith C. Van Loon	)	

WHEREAS, a complaint has been received by the Board of Examiners of Psychologists relative to the conduct of Keith C. Van Loon, Ph.D., a licensee of the Board; and

WHEREAS, such negotiations have led to a Stipulation for the Revocation of license, which said stipulation for revocation has now been approved by the Board of Examiners of Psychologists and has been duly executed by Keith C. Van Loon, licensee; S. Richard Gunn, Complaints Officer, Fred Magnavito, President, South Dakota Board of Examiners of Psychologists; and Timothy Bartlett, Assistant Attorney General, the attorney for the Board of Examiners of Psychologists; and

WHEREAS, said stipulation provides for the entry of an order revoking the license of Keith C. Van Loon to practice psychology within the State of South Dakota; now, it is therefor

ORDERED, that the license to practice psychology, held by Keith C. Van Loon, Ph.D., is hereby revoked in accordance with the Stipulation for Revocation, a copy of which is attached hereto and by this reference incorporated herein as if fully set out; and it is further

ORDERED, that in accordance with said stipulation Keith C. Van Loon, Ph.D., shall surrender his South Dakota license certificate for the practice of psychology in South Dakota within

ten (10) days of service of the order and stipulation upon him;
and it is further

ORDERED, that Keith C. Van Loon shall engage in no further
acts constituting the practice of psychology within the State of
South Dakota.

Dated this 13 day of July, 2000.


Fred Magnavito, Ph.D.
President
SDBEP

ATTEST:


Carol Tellinghuisen

c-pld502.tb

Exhibit "C"

STATE OF SOUTH DAKOTA

SOUTH DAKOTA BOARD OF EXAMINERS OF PSYCHOLOGISTS

IN THE MATTER OF THE	)	NOTICE OF ENTRY OF ORDER OF
PROFESSIONAL LICENSE OF:	)	REVOCATION OF LICENSE
Keith C. Van Loon	)	

TO: SOUTH DAKOTA BOARD OF EXAMINERS OF PSYCHOLOGISTS, S. RICHARD GUNN, Ph.D., COMPLAINT OFFICER; FRED MAGNAVITO, Ph.D. PRESIDENT; and to KEITH C. VAN LOON, Ph.D ABOVE NAMED LICENSEE:

You and each of you will please take notice that on the 13th day of July, 2000, the South Dakota Board of Examiners of Psychologists entered its Order of Revocation of License, pursuant to a stipulation for revocation, said Stipulation being dated June 29, 2000. True, correct and complete copies of the Order of Revocation of License are attached hereto and incorporated by reference herein. This Order of Revocation of License constitutes the final action of the South Dakota Board of Examiners of Psychologists in the above-referenced matter, and is subject to appeal to the South Dakota Circuit Court and the South Dakota Supreme Court in accordance with applicable law.

Dated this 25th day of July, 2000.

SOUTH DAKOTA BOARD OF
EXAMINERS OF PSYCHOLOGISTS



Timothy Bartlett
Assistant Attorney General
500 East Capitol Avenue
Pierre, South Dakota 57501-5070
Telephone: (605) 773-3215

STATE OF IOWA
BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	CASE NO. 00-005
	)	
KEITH C. VAN LOON, Ph.D.	)	NOTICE OF HEARING
License No. 301-00677	)	
	)	
RESPONDENT	)	

YOU ARE HEREBY NOTIFIED that on October 20, 2000, the Iowa Board of Psychology Examiners found probable cause to file a Statement of Charges against you. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 154B, and 272C (1999) and 645 Iowa Administrative Code chapters 9, 11, 13, and 325. A copy of the Statement of Charges is attached, and sets forth the particular statutes and rules which you are alleged to have violated, and further provides a short and plain statement of the matters asserted.

IT IS HEREBY ORDERED that a disciplinary contested case hearing be held upon the Statement of Charges on Friday, April 20, 2001, before the Board. The hearing shall begin at 10:00 a.m. and shall be held in the Lucas State Office Building-5th Floor Professional Licensure Board Room #525, 321 E. 12th Street, Des Moines, Iowa. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on pre-hearing matters, and be present to assist and advise the Board at hearing.

Within 20 days of the date you are served with the Statement of Charges and Notice of Hearing, you are required by 645 IAC 11.12 to file an answer to the charges. In that answer, you should also state whether you will require an adjustment of the date and time of the hearing.

At hearing, you may appear personally and be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11.

The office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of all pleadings filed with the Board should be provided to counsel for the State at the following address:

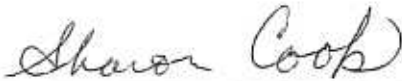
Shauna Shields
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, IA 50319
Phone (515) 281-7175

If you fail to appear at hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC chapter 12. If you are interested in pursuing settlement of this matter, please contact Shauna Shields, Assistant Attorney General, at the above telephone number.

If you require the assistance of auxiliary aids or services to participate in the hearing because of a disability, immediately call 515/281-5787.

Dated this 24th day of October 2000.

A handwritten signature in cursive script that reads "Sharon Cook". The signature is written in dark ink and is positioned above a horizontal line.

Sharon Cook, Board Administrator
Iowa Board of Psychology Examiners